

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #10	CCRB Case #: 201609673	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 11/08/2016 9:50 AM	Location of Incident: Westbound Brooklyn Queens Expressway entrance ramp by McGuinness Boulevard exit	18 Mo. SOL 5/8/2018	Precinct: 94
Date/Time CV Reported Mon, 11/21/2016 4:55 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Mon, 11/21/2016 6:03 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Julia Nazim	16203	950939	094 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Felicia Alfred	20292	932244	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Julia Nazim	Discourtesy: Police Officer Julia Nazim spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On November 21, 2016, § 87(2)(b) filed this complaint in-person at the 94th Precinct stationhouse. On November 8, 2016, § 87(2)(b) was driving his work truck alone on McGuinness Avenue in Brooklyn. An unmarked blue sedan driving behind § 87(2)(b) turned its emergency lights on. § 87(2)(b) pulled over before the entrance to the Brooklyn Queens Expressway. The officers in the unmarked sedan did not exit after several minutes and § 87(2)(b) interpreted this as the officers did not agree with the location he had decided to pull over at. § 87(2)(b) began to drive up the entrance ramp to pull over at a different location. The unmarked sedan sped up and passed § 87(2)(b) on the left and slammed on its brakes cutting § 87(2)(b) off. Police Officer Julia Nazim and Police Officer Felicia Alfred of the 94th Precinct jumped out of the unmarked sedan and approached § 87(2)(b) who had stepped out of his work truck at this time. PO Nazim allegedly yelled, “Why didn’t you stop back there? Why the fuck didn’t you stop back there?” (**Allegation A**). PO Nazim requested § 87(2)(b)’s information and allegedly told him, “You are getting a fucking ticket” (**Allegation A**).

§ 87(2)(b) was issued summons #§ 87(2)(b) for operating a motor vehicle while using a cell phone.

There is no video footage of the incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) initially accepted mediation on December 13, 2016, and then rejected mediation on January 31, 2017.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of February 16, 2017, an inquiry into the office of the New York City Comptroller revealed that no notice of claim was filed by § 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 2)
- PO Julia Nazim has been a member of the NYPD for 5 years. PO Nazim has five prior CCRB cases, with eight allegations made against her. In CCRB case #201210116, a nightstick as a club allegation was closed as Complainant Uncooperative. In CCRB case #201500310, a refusal to provide name and shield and a discourteous action allegations were closed as Complaint Withdrawn. In CCRB case #201506414, a refusal to provide name and shield allegation was substantiated. The Board recommended formalized training and the NYPD concurred with the Board’s recommendation. § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A -Discourtesy: Police Officer Julia Nazim spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) and PO Nazim interacted on the entrance ramp to the Brooklyn Queens Expressway. § 87(2)(g)

§ 87(2)(b) (Board Review 4) was driving alone in a work truck on McGuinness Boulevard in the far left lane. § 87(2)(b) noticed an unmarked navy sedan behind him with its emergency lights on. § 87(2)(b) pulled off on the right side of the road in front of the entrance ramp to the Brooklyn Queens Expressway. The officers in the unmarked sedan did not exit their sedan for several minutes and § 87(2)(b) interpreted this as the officers did not agree with the location he had chosen to pull over at. § 87(2)(b) began to drive down the entrance ramp of the Brooklyn Queens Expressway, when the unmarked sedan passed § 87(2)(b)'s truck on the left and braked in front of § 87(2)(b)'s truck, causing § 87(2)(b) to come to a complete stop. PO Julia Nazim and PO Felicia Alfred jumped out of the unmarked sedan and approached § 87(2)(b) who had stepped out of his work truck at this time. PO Nazim allegedly yelled, "Why didn't you stop back there? Why the fuck didn't you stop back there?" § 87(2)(b) did not reply and PO Nazim allegedly stated, "You are getting a fucking ticket." In § 87(2)(b)'s complaint filed at the 94th Precinct stationhouse (Board Review 5), § 87(2)(b) stated that "obscene language" was used towards him, but he did not specify what was said. PO Nazim asked for § 87(2)(b)'s information, which he provided. PO Nazim asked § 87(2)(b) to drive to the next exit, as traffic was beginning to back up on the entrance ramp. § 87(2)(b) complied with PO Nazim's request and drove to the next exit and pulled off the road. PO Nazim approached § 87(2)(b)'s truck and issued him a summons for operating a motor vehicle while using a cell phone. § 87(2)(b) refused to comment whether he was using a cell phone while driving.

PO Nazim's and PO Alfred's statements § 87(2)(g)

§ 87(2)(b) PO Nazim was the driver of an unmarked navy sedan, while her partner, PO Alfred, was the passenger. The unmarked sedan was parked on McGuinness Boulevard. PO Nazim and PO Alfred observed § 87(2)(b) operating a delivery truck while holding a cell phone in his right hand to his right ear. PO Nazim immediately put on the emergency lights and sirens and pulled out behind the truck. After several blocks, § 87(2)(b) pulled the truck off into the far right lane. PO Nazim pulled over behind § 87(2)(b)'s truck. Within seconds, § 87(2)(b) pulled out of the far right lane and rejoined the flow of traffic. PO Nazim pulled back out and began to follow § 87(2)(b)'s truck with the emergency lights on. Roughly one hundred feet ahead, § 87(2)(b) pulled the truck off into the far right lane. PO Nazim pulled over behind § 87(2)(b)'s truck. Again, § 87(2)(b) pulled out of the far right lane and rejoined the flow of traffic. PO Nazim pulled back out again and began to follow § 87(2)(b)'s

truck with the emergency lights on. § 87(2)(b) entered onto the entrance ramp of the Brooklyn Queens Expressway. PO Alfred only recalled § 87(2)(b) pulling over into the far right lane one time, before entering the entrance ramp of the Brooklyn Queens Expressway. PO Nazim passed § 87(2)(b)'s truck on the left and drove in front of § 87(2)(b)'s truck diagonally and braked, forcing § 87(2)(b)'s truck to come to a complete stop. PO Nazim exited the unmarked sedan and approached the driver's side of the truck. § 87(2)(b) was laughing upon approach. PO Nazim asked § 87(2)(b) "What are you doing?" § 87(2)(b) did not reply. PO Alfred recalled § 87(2)(b) responding to PO Nazim that "did not hear [the sirens]." PO Alfred described PO Nazim's demeanor at this time as being "upset" and PO Nazim spoke to § 87(2)(b) in a raised voice. PO Nazim denied that she asked § 87(2)(b) "Why didn't you stop back there? Why the fuck didn't you stop back there?" PO Alfred did not remember hearing PO Nazim say, "Why didn't you stop back there? Why the fuck didn't you stop back there?" PO Nazim explained the reason of the stop and asked § 87(2)(b) if there was an emergency that required him to use a cell phone while operating a motor vehicle and § 87(2)(b) replied there was no emergency. PO Nazim denied that she told § 87(2)(b) that he was "getting a fucking ticket." PO Alfred did not hear PO Nazim tell § 87(2)(b) that he was "getting a fucking ticket." PO Nazim requested § 87(2)(b)'s information, which § 87(2)(b) provided. Due to the traffic beginning to pile up on the ramp, PO Nazim asked § 87(2)(b) to drive to the next exit, Metropolitan Avenue, and pull over there. PO Nazim and PO Alfred returned to their unmarked sedan and followed § 87(2)(b) to the next exit. PO Nazim wrote a summons for using a cell phone while operating a motor vehicle. PO Nazim approached § 87(2)(b)'s truck and handed § 87(2)(b) the summons. PO Nazim denied using any profanity towards § 87(2)(b) during the vehicle stop. PO Alfred did not hear PO Nazim use any profanity towards § 87(2)(b) during the vehicle stop.

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad: 10

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date